

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

16. JAMIE LUPER V. RICHARD LIMING

PFL20180266

Petitioner filed a Request for Order (RFO) on January 23, 2026, following the court's denial of her ex parte application for emergency custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on February 20, 2026, and a review hearing on April 16, 2026. There is no Proof of Service showing Respondent was properly served.

Both parties appeared at CCRC, however, Respondent did not participate as he asserted he had not been properly served with the moving papers. Despite this, the CCRC counselor produced a report with recommendations. It was filed with the court on March 27, 2026 and copies were mailed to the parties the same day.

Respondent filed a Responsive Declaration on April 3, 2026. It was served on Petitioner on April 3, 2026. Respondent objects to the court hearing the matter as he was never properly served. Further, there are Domestic Violence Restraining Orders out of Sacramento County, which protect the minors.

The court drops the matter from calendar due to the lack of proper service. All prior orders remain in full force and effect.

TENTATIVE RULING #16: THE COURT DROPS THE MATTER FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.